Notification Waiver Determination

PT AP Investment - Vitrinite

Acquisition	Crossfield Global Pte Ltd, a connected entity of PT AP Investment (**API**), applied for a notification waiver in respect of its proposed acquisition (via a yet to be incorporated wholly owned Australian subsidiary) of substantially all of the assets of Vitrinite Pty Ltd (**Vitrinite**), as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	30 July 2026

Parties to the Acquisition	The acquirer, API, is an Indonesian investment and holding company. API's interests are predominantly in the natural resources sector, including a 15.45% interest in PT Amman Mineral Internasional Tbk, an Indonesian copper and gold mining company. It also indirectly holds a minority interest in Macmahon Holdings Limited, which provides mining services and civil infrastructure services to resource and energy companies, including coal mining companies, in Australia. API and its connected entities do not produce, supply, trade, or deal in metallurgical coal in Australia. The target, Vitrinite, is an Australian company that owns the Vulcan Mine, a coal mine in Queensland's Bowen Basin. Vitrinite entered voluntary administration in February 2026, and the Vulcan Mine was placed into care and maintenance. Prior to being placed into care and maintenance, the Vulcan Mine principally produced metallurgical coal. Vitrinite also holds interests in undeveloped coal projects that are in pre-feasibility and exploration stages.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no horizontal overlap between API or its connected entities and Vitrinite in Australia b. while there is a potential vertical relationship between the surface mining services supplied by a connected entity of API and the coal mining operations of Vitrinite, there is low risk of foreclosure or other concerning vertical effects

	arising from the Acquisition due to the presence of alternative providers of the relevant services in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act